

2009 SCC OnLine All 1931 : (2009) 83 AIC 493 : (2010) 1 All LJ
(NOC 84) 22

Allahabad High Court
(BEFORE SUNIL AMBWANI AND RAN VIJAI SINGH, JJ.)

Between

Tehsildar

Versus

State of U.P. and others

C.M.W.P. No. 35103 of 2009

Decided on July 16, 2009



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The Judgment of the Court was delivered by

SUNIL AMBWANI and RAN VIJAI SINGH, JJ.:— Heard learned Counsel for the petitioner. Shri Rajesh Tripathi has accepted notice on behalf of respondents.

2. A first information report of the theft of electricity under section 135 of the Electricity Act was lodged against the petitioner on the basis of checking report dated 22.4.2008 in which 7.5 H.P. motor was found to be connected with the electric connection in the house by three core cable recovered from the spot.

3. A provisional assessment was made. The petitioner was granted bail by this Court on 11.6.2008 on the ground that the co-accused has already been granted bail.

4. By this writ petition, the petitioner has challenged the recovery of Rs. 1,63,141/- and recovery charges.

5. Paragraph 8.1 (b) of the U.P. Electricity Supply Code, 2005 provides for making final assessment in cases of theft before the recovery can be initiated. The relevant paragraphs are quoted as below:—

“8.1 (b)—Hearing

(ii) No theft case shall be booked for mere breakage of window glass or old seal of the energy meter. In such cases, if the average monthly consumption pattern for last one year is reasonably uniform as the assessed consumption (monthly), and there is no other *prima facie* evidence of theft/U.U.E. found at the consumer premises, no

further proceedings shall be taken for theft/U.U.E. of electricity and the decision shall be communicated to the consumer under proper receipt within 7 working days of the date of inspection, and connection shall be restored through original meter after proper checking/resealing. The contents of such report commending for dropping the case shall be communicated to the Special Court within a copy to the police station where the F.I.R. was lodged.

(iii) If the assessing officer of the licensee suspects that theft, of electricity has taken place (as defined under section 135 of the Act), he will serve the provisional assessment bill along with show cause notice to the consumer for hearing giving 15 working days, under proper receipt. The notice shall invite objections in writing from the consumer, if any, against the charges and provisional assessment and require the presence of the consumer to answer to all the charges imposed by the licensee.

(iv) If, after hearing, the authorized officer finds that a case of theft has been established, the assessment shall be done for the energy consumption for past period as per the assessment formula given in Annexure-6.3 on 1.5 (one and a half) times the rates as per applicable normal tariff to the purpose for which the energy is abstracted, used or consumed or wasted or diverted, whichever is higher and demand and collect the same by including the same in a separate bill. This is in addition to any civil/criminal proceedings that may be instituted as provided by the Act, and described in Clause 8.2.

(vii).

(v) A copy of the order shall be served to the consumer under proper receipt and in case of refusal to accept the order or in absence



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of the consumer, shall be served on him under registered post/speed post. The authorized officer may extend the last date of payment or approve the payment to be made in instalments on a consideration of the financial position and other conditions of the licensee. The amount, the extended last date and/or time schedule of payment/instalments should be clearly stated in the speaking order.”

6. Shri Rajesh Tripathi states that the provisional assessment was made under paragraph 8.1 of the U.P. Electric Supply Code, 2005 and that no objections were filed on which the provisional assessment was sent to be recovered.

7. Shri Rajesh Tripathi fairly admits that final assessment was not made. The provisional assessment was served and that the petitioner was given sufficient opportunity to file his reply in writing or to be heard in person.

8. The provision of paragraph 8.1 (b) of the U.P. Electricity Supply Code, 2005 provides for making final assessment, even if, the objection has not been filed. It is necessary to make final assessment of recording findings that provisional assessment was served upon consumer. The insistence of recovering the amount without making any final assessment is violative of procedure prescribed under the code.

9. The writ petition is consequently allowed with directions that the recovery in pursuance of recovery notice dated 6.6.2009 of Rs. 1,63,341/- of the electricity on account of theft of electricity shall remain in abeyance until final assessment is made against the petitioner.

10. *Petition Allowed.*

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